
BALANCING AUTHORITIES: CONFLICTS BETWEEN LOCAL ENVIRONMENTAL CODES AND NATIONAL GOVERNMENT AGENCIES

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Environmental governance in the Philippines is characterized by a complex interplay between local and national authorities. This dynamic often leads to jurisdictional conflicts and challenges in the implementation and enforcement of environmental laws. The Philippine Environment Code (Presidential Decree No. 1152) is the primary law in addressing the concerns of the country with respect to the environment on a broad spectrum.¹ The Local Government Code of 1991 (Republic Act No. 7160) empowers local government units (LGUs) to enact local environmental ordinances specifically tailored to address environmental issues affecting their area of jurisdiction.² Simultaneously, national agencies like the Department of Environment and Natural Resources (DENR) retain broad regulatory authority under various national statutes.

This paper explores the issues arising from this dual governance system, analyzing relevant cases and decisions. It also aims to understand resolutions between conflicting jurisdiction and authority between Local Environmental Codes and National Agencies empowered to implement environmental objectives.

Environmental Legal Framework of the Philippines

The Philippine environmental legal framework is rooted in both national statutes and local ordinances. The primary national laws include the Philippine Environment Code (Presidential Decree No. 1152), the Clean Water Act (Republic Act No. 9275), and the Clean Air Act (Republic Act No. 8749), among others. The DENR is the principal agency responsible for enforcing these laws, overseeing environmental management, and regulating natural resources.

The enactment of the Local Government Code in 1991 marked a significant shift towards decentralization, granting LGUs substantial autonomy to manage local affairs, including environmental protection. Sections 3 and 16 of the Local Government Code emphasize the role of LGUs in promoting the general welfare, which encompasses environmental management. The Local Government Code of the Philippines empowers provinces and cities to enact their own Local Environment Code addressing areas and issues not specifically raised in national statutes. It hands the LGUs the reins to decide which direction to take in improving the conditions and

¹ Philippine Environment Code, Pres. Dec. No. 1152 s. 1977, (June 6, 1977) (Phil.), <https://www.officialgazette.gov.ph/1977/06/06/presId.ential-decree-no-1152-s-1977/>

² Local Government Code, Rep. Act No. 7160 (Phil.).

strengthening the protection of their areas. Each locality deals with various types of ecosystems, protected areas, and endangered species which require distinct initiatives formulated through first-hand analyses, observation, and calculation.

This decentralization has led to overlapping authorities and jurisdictional conflicts between LGUs in implementing their ordinances and Local Environment Codes and national agencies on the authority conferred upon them by national statutes.

Jurisdictional Conflicts

Jurisdictional conflicts between local environmental codes and national government agencies manifest in various ways—

1. Overlapping Regulations and Permits

LGUs often enact ordinances that require local permits for activities already regulated by national agencies. For instance, a local ordinance may require a municipal permit for quarrying activities, while the DENR also mandates a separate Environmental Compliance Certificate (ECC). This dual permitting process can cause delays, increased costs, and confusion among stakeholders. To illustrate, coastal development projects in Batangas such as resorts and marine sanctuaries must adhere to local zoning ordinances and obtain permits from the municipal government.³ At the same time, they need to comply with national regulations under the Philippine Fisheries Code and secure permits from the DENR for activities that affect coastal and marine environments. This dual regulation can cause significant delays and increase the complexity of project implementation.⁴

2. Contradictory Policies

In some cases, local ordinances may contradict national policies. These contradictions can undermine the effectiveness of both local and national environmental strategies. A subject illustrating this matter is the Baguio City Ordinance 36, series of 2017, or the “Plastic and Styrofoam-Free Baguio City

³ An Ordinance Adopting the City of Batangas Revised Zoning Ordinance and Providing for The Administration, Enforcement And Amendment Thereof And For The Repeal Of All Ordinances In Conflict Therewith, (March 17, 2016), <https://www.batangascity.gov.ph/web/images/Offices/LEIPO/Zoning-Ordinance.pdf>

⁴ The Philippine Fisheries Code Of 1998, Republic Act No. 8550, (February 25, 1998), <https://www.bfar.da.gov.ph/wp-content/uploads/2021/02/Philippine-Fisheries-Code-of-1998.pdf>

Ordinance”⁵ which represents an effort towards combating plastic pollution and advancing environmental conservation within the city. However, its implementation raises complex legal questions surrounding jurisdiction and alignment with national legislation. This conflict underscores a broader debate over the authority of local governments to enact environmental regulations that may intersect with national policies on waste management and packaging.

The case of *City of Manila v. Laguio*⁶ has established the autonomy of local government units in crafting ordinances that promote public welfare within their jurisdictions. It may come into conflict with national laws such as Republic Act No. 9003 (R.A. No. 9003),⁷ also known by its short title as the “Ecological Solid Waste Management Act of 2000.” As a legislation, R.A. No. 9003 provides a comprehensive framework for solid waste management at the national level, including provisions on segregation, recycling, composting, and the regulation of certain types of packaging materials. While Baguio’s ordinance aims to address plastic pollution by banning plastic bags, it may be perceived as inconsistent with the broader national strategy outlined in R.A. No. 9003, which emphasizes waste segregation, recycling, and proper disposal rather than outright bans.

3. Legal Disputes

Jurisdictional ambiguities frequently result in legal disputes between LGUs and national agencies. Courts are often called upon to interpret the extent of local autonomy versus national authority, leading to varying judicial interpretations and further complicating the legal landscape.

3.1 Boracay Island Rehabilitation

The rehabilitation of Boracay Island in 2018 highlighted jurisdictional issues between local and national authorities. In Proclamation No. 475, s. 2018,⁸ declaring a state of calamity in the island of Boracay and temporary closure of the island as a tourist destination and to facilitate its rehabilitation. The order, issued by the President, aimed to address the environmental issues on the island.

⁵ Philippine News Agency, <https://www.pna.gov.ph/articles/1058830#:~:text=Ordinance%2036%2C%20series%20of%202017,same%20in%20packaging%20their%20products>

⁶ *City of Manila v. Laguio*, G.R. No. 118127, (April 12, 2005) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/43608>

⁷ Republic Act No. 9003, (January 26, 2001) (Phil.), <https://www.officialgazette.gov.ph/2001/01/26/republic-act-no-9003/>

⁸ Office of the President, Declaring A State of Calamity in The Barangays Of Balabag, Manoc-Manoc And Yapak (Island Of Boracay) In The Municipality Of Malay, Aklan, And Temporary Closure Of The Island As A Tourist Destination, Proc. No. 475, s. 2018, (April 26, 2018) (Phil.), <https://www.officialgazette.gov.ph/2018/04/26/proclamation-no-475-s-2018/>

This decision was met with resistance from local officials who argued that such actions should involve more consultation with LGUs. In *Zabal v. Duterte*,⁹ the petitioners in their Supplemental Petition, argue that that Proclamation No. 475 unduly disturbs upon the local autonomy of affected LGUs since it orders the said LGUs to implement the closure of Boracay and the ban of tourists and non-residents therefrom. While petitioners acknowledge the President's power of supervision over LGUs, they nevertheless point out that he does not wield the power of control over them. The President can only call upon the attention of the LGUs with respect to rules which they fail to follow. They argue that the President may supervise but he cannot lay down the rules himself as this already constitutes control. The arguments laid down by the petitioners are grounded on the constitutional provision on the President's exercise of general supervision over local governments¹⁰ in relation to Republic Act No. 7160 (R.A. No. 7160),¹¹ restating such prerogative.

The Supreme Court in its decision sustained the constitutionality and validity of the proclamation and slammed down the issue of encroachment. The involvement of other government agencies in Boracay's rehabilitation does not imply that LGU powers are being encroached upon. Each agency's role is clearly defined in Executive Order No. 53¹² and aligns with their mandates. Boracay, a major tourist destination, has issues that affect the national level, not just local. Despite LGUs being aware of Boracay's problems, they have failed to effectively address them.¹³ The case underscored the need for clearer guidelines on the roles and responsibilities of local and national entities in environmental crises. It is evident how confusion between jurisdiction of local and national authorities affects legitimate objectives towards environmental protection.

3.2 Manila Bay Rehabilitation

The rehabilitation of Manila Bay has been a longstanding environmental issue in the Philippines. Manila Bay, one of the country's most important coastal resources, has suffered from severe pollution due to various anthropogenic activities, including improper waste disposal, industrial runoff, and urban encroachment. In 2008, the Supreme Court issued a continuing mandamus in response to petitions filed by concerned residents and environmental groups, directing various government

⁹ *Zabal v. Duterte*, G.R. No. 238467, (February 12, 2019) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/64872>

¹⁰ CONST. (1987), art. X (Phil.).

¹¹ Local Government Code, Rep. Act No. 7160 (Phil.).

¹² Office of the President, Creating a Boracay Inter-Agency Task Force, Providing for its Powers and Functions and Those of the Member-Agencies Thereof, and Other Measures to Reverse the Degradation of Boracay Island, Exec. Ord. No. 53, s. 2018 (May 8, 2018) (Phil.).

¹³ *Zabal v. Duterte*, G.R. No. 238467, (February 12, 2019) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/64872>

agencies, including the DENR and the Metropolitan Manila Development Authority (MMDA), to clean up and rehabilitate Manila Bay.¹⁴

The decision balanced the necessity of urban progress with the imperative of safeguarding Manila Bay's ecological integrity. While affirming the MMDA's authority in urban planning, the court also underscored the paramount importance of environmental preservation, directing collaborative efforts between the government agencies to ensure sustainable development practices and mitigate adverse environmental impacts, thereby striking a balance between progress and protection for the benefit of both present and future generations.

The duty of MMDA with respect to solid waste disposal is set forth not only in the Philippine Environmental Code, but in its charter as well. This duty of raising a proper waste disposal system cannot be characterized as discretionary. The government agencies enjoined, as a matter of statutory obligation, to perform certain functions relating directly or indirectly to the cleanup, rehabilitation, protection, and preservation of the Manila Bay. They are precluded from choosing not to perform these duties.¹⁵

The implementation of the Supreme Court's directive faced challenges due to overlapping responsibilities and coordination issues among various government agencies, LGUs, and stakeholders. Local governments along the Manila Bay coastline have jurisdiction over land use planning, waste management, and other environmental issues within their respective jurisdictions. However, the magnitude of the pollution problem in Manila Bay requires concerted efforts at the national and regional levels. Coordination among LGUs, the DENR, the MMDA, and other concerned agencies is essential for effective implementation, but differing priorities and resource constraints hinders its progress.

Local Environmental Codes vis-à-vis the Philippine Environmental Code

The interplay between local environmental codes and the Philippine Environmental Code is shaped by the constitutional framework of local autonomy and the overarching authority of national legislation. The Local Government Code of 1991 (R.A. No. 7160) empowers local government units (LGUs) to enact ordinances to protect and enhance the environment, fostering a system where local and national environmental policies coexist and occasionally intersect. *Laguna Lake Development Authority v. Court of Appeals*¹⁶ underscores that while LGUs have the right to regulate within their jurisdiction, their ordinances must not contravene national laws

¹⁴ MMDA v. Concerned Residents of Manila Bay, G.R. Nos. 171947-48, (December 18, 2008) (Phil.) <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/48335>

¹⁵ *Id.*

¹⁶ *Laguna Lake Development Authority v. Court of Appeals*, G.R. No. 120865-71, (December 7, 1995) (Phil.).

and policies. Furthermore, *Boracay Foundation, Inc. v. Province of Aklan*¹⁷ illustrates the need for local environmental initiatives to adhere to national legislation and procedural due process.

Local environmental codes must align with the Philippine Environmental Code's comprehensive framework, which addresses various aspects such as air and water quality, land use, and natural resource management. In practice, local ordinances often complement the national code by addressing specific regional environmental concerns, such as those seen in the Quezon City Environmental Code,¹⁸ which supplements national policies with local initiatives on waste management and pollution control. However, conflicts arise when local ordinances impose stricter regulations or diverge from the standards set by national laws, requiring judicial interpretation to reconcile these differences. The harmonization of local and national environmental codes thus relies on a balance between respecting local autonomy and maintaining the supremacy of national standards, ensuring that local initiatives contribute to the national environmental policy goals without overstepping legal boundaries. This delicate balance is crucial in the pursuit of sustainable development, where both local and national governments play vital roles in environmental protection.

Harmonizing Local and National Initiatives

The harmonization of local and national environmental initiatives in the Philippines is imperative to prevent overlapping authority and jurisdiction, ensuring efficient and effective environmental governance. The Local Government Code grants LGUs autonomy in environmental management, empowering them to enact ordinances and regulations for environmental protection within their territorial jurisdiction. However, to avoid conflicts and inconsistencies, LGU actions must align with national policies and laws such as the Philippine Environmental Code, Clean Air Act, Clean Water Act, Ecological Solid Waste Management Act, among others.

These laws provide the legal framework for environmental protection at the national level, establishing standards and guidelines that LGUs must adhere to in making their local environmental initiatives. Furthermore, mechanisms for coordination and cooperation between national agencies and LGUs promote balance and collaboration in addressing environmental challenges. By harmonizing local and national efforts, duplication of efforts is minimized, confusion in authority is reduced, and the collective goal of sustainable environmental management is pursued effectively.

¹⁷ *Boracay Foundation, Inc. v. Province of Aklan*, G.R. No. 196870, (June 26, 2012) (Phil.), <https://elibrary.judiciary.gov.ph/thebookshelf/showdocs/1/54938>

¹⁸ An Ordinance Providing For The Environmental Protection And Waste Management Code Of Quezon City, (June 13, 2016), <https://quezoncitycouncil.ph/ordinance/SP/SP-2350,%20S-2014.pdf>

Conclusion

The interaction between local and national authorities in the Philippines presents a unique challenge in environmental governance. As examined, the overlapping jurisdictions of LGUs and national agencies often lead to conflicts that complicate the implementation and enforcement of environmental laws. This dual governance system, while designed to ensure comprehensive coverage and local adaptability, sometimes creates inefficiencies and legal ambiguities.

Local governments, empowered by the Local Government Code are positioned to address specific environmental issues within their jurisdictions through tailored ordinances. This local autonomy allows for more responsive and context-specific environmental management. However, when local ordinances conflict with national regulations and the broader mandates of national agencies and statutes, the result is often a contentious struggle over authority. The resolution of these conflicts requires a balanced approach that respects both the necessity of national oversight and the benefits of local governance. Legal frameworks and judicial decisions have shown that collaborative approaches, where both local and national bodies work in tandem rather than in opposition, are crucial. Mechanisms for dialogue and cooperation, such as joint task forces or inter-agency committees, can facilitate this balance by allowing for shared responsibility and coordinated action.

Moreover, there is a pressing need for clearer legislative guidance on the interplay between local and national authorities. Revisions to existing laws or new legislation could provide more precise definitions of jurisdiction and authority, reducing the scope for conflicts. This legislative clarity would empower LGUs to pursue effective environmental governance while ensuring that national standards and objectives are upheld. The effective governance of environmental issues in the Philippines hinges on the harmonization of local and national efforts. Addressing jurisdictional conflicts through clearer laws, cooperative mechanisms, and a commitment to mutual goals is essential. As the country faces increasing environmental challenges, the ability of LGUs and national agencies to work together will be critical in achieving sustainable and effective environmental management. The path forward lies in fostering a collaborative character that exhibits the strengths of both local responsiveness and national oversight, ensuring that environmental protection efforts are coherent, comprehensive, and capable of addressing the diverse needs of the Philippine environment.

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